

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

COMPLAINANT'S RESPONSE
TO RESPONDENTS' MOTION
TO STRIKE IMCC'S REPLY
STATEMENT OF UNDISPUTED
MATERIAL FACTS

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations ("IMCC") respectfully submits this brief in opposition to Respondents' Motion to Strike ("Mot.") IMCC's Reply Statement of Undisputed Material Facts ("Reply SUMF").

As Respondents concede, Mot. 2, nothing in the FMC Rules or the Presiding Officer's orders prohibits a Reply SUMF. Rather, the FMC rules mirror the local civil rules of the U.S. District Court for the District of Columbia, in that they neither require nor prohibit Reply SUMFs in motions for summary decision. *Compare* 46 CFR § 502.70(a)-(c) with [D.D.C. Civ. L.R. 7\(h\)\(1\)](#). Interpreting those local rules, the District Court permits Reply SUMFs and regularly rejects motions to strike them. *See McFadden v. Ballard, Spahr, Andrews & Ingersoll, LLP*, Civ. No. 05-2401, 2008 WL 2569418, at *1 (D.D.C. June 24, 2008) (denying motion to

strike) (“As to the Reply Statement [of Facts], however, the Court does not find any violation of the Local Rules that would justify its striking.”); *1443 Chapin Street, LP v. PNC Bank, N.A.*, 810 F. Supp. 2d 209, 227 (D.D.C. 2011) (denying motion to strike) (movant “concedes, as it must, that nothing in the Local Rules of this Court ‘specifically prohibits’ such filings” (citation omitted)).

Here, IMCC filed its Reply SUMF to assist the Presiding Officer to determine whether there are any **material** facts that are **genuinely** in dispute. Fed. R. Civ. P. 56(a); *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 248 (1986). This additional context from the factual record is necessary, given Respondents’ efforts to challenge even the most indisputable of facts. *See, e.g.*, Reply SUMF ¶ 10 (Respondents denying that chassis are “used in receiving, handling, storing, or delivering property.”). Further, the Reply SUMF will assist the Presiding Officer by collecting in one single document the relevant evidence needed to determine whether a dispute is genuine, or a fact is material. Moreover, the Reply SUMF does not ask the Presiding Officer to weigh evidence or evaluate credibility.

Respondents’ citation to 46 C.F.R § 502.71, which governs **non**-dispositive motions, is incorrect. Mot. 4. Here, IMCC’s motion for summary decision is a **dispositive** motion. *See* 46 C.F.R § 502.69(g). The applicable Rule, 46 C.F.R § 502.70(c), explicitly envisions Reply briefing; and so Respondents’ own reasoning counsels in favor of IMCC’s Reply SUMF.¹ Their sole cited case is also inapposite. Mot. 4. There, the district court held that its local rules explicitly “**preclude**” filing a Reply SUMF. *Circle Group v. Se. Carpenters Regional Council*, 836 F. Supp. 2d 1327, 1349 (N.D. Ga. 2011) (citing N.D. Ga. Civ. L.R. 56.1 A (“the parties **shall**

¹ Respondents similarly cannot rely on 46 C.F.R § 502.70(d), which addresses non-movant **surreplies** to dispositive motions that are not at issue here. Mot. 4.

not be permitted to file supplemental briefs and materials”)). Nor does the Presiding Officer need consider Respondents’ unnecessary repetitions of their general objections. Mot. 2-3. IMCC responded to those general objections in its prefatory notes. See Reply SUMF 4-6. IMCC drafted its SUMF and Reply SUMF that way to ease the Presiding Officer’s already difficult burden of digesting the voluminous factual record.

Last, Respondents’ Motion should be denied because of their dilatory filing, yet again, flouts the Presiding Officer’s scheduling order. Respondents chose not to file a Reply SUMF and now ask for permission to file out of time, Mot. 5, **two full weeks** after the completion of summary decision briefing. This is not simply a motion to strike. Their request amounts to another tacit and untimely attempt to extend the briefing schedule.

Accordingly, IMCC respectfully requests that the Presiding Officer deny Respondents’ motion to strike IMCC’s Reply SUMF.

DATED: July 1, 2022

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that, on July 1, 2022, a true and current copy of the foregoing Complainant's Response to Respondents' Motion to Strike IMCC's Reply SUMF was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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